

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Corn Production Acts (Repeal) Act, 1921 ...	11 & 12 Geo. 5. c. 48.
Law of Property Act, 1925	15 & 16 Geo. 5. c. 20.
Land Charges Act, 1925	15 & 16 Geo. 5. c. 22.
County Courts Act, 1934	24 & 25 Geo. 5. c. 53.
Agriculture Act, 1958	6 & 7 Eliz. 2. c. 71.

CHAPTER 55

Dog Licences Act, 1959

ARRANGEMENT OF SECTIONS

Charge of duty

Section

1. Charge of duty.

Exemptions from duty

2. Exemption for puppies.
3. Exemption for dog kept by blind person.
4. Exemption for sheep dogs.
5. Provisions as to issue of certificate under s. 4 in respect of dog kept in England or Wales.
6. Provisions as to issue of certificate under s. 4 in respect of dog kept in Scotland.

Levy of duties, issue of licences, etc.

7. Levy of duties, issue of licences, etc., in respect of dogs kept in England or Wales.
8. Levy of duties, and issue of licences, in respect of dogs kept in Scotland.
9. Duration of licences and certificates of exemption.
10. Registers of dog licences.
11. Forms of licences, etc.

Offences

12. Penalty for keeping dog without licence.
13. Penalty for not producing licence, etc.
14. Penalty for making false statement in declaration under s. 4.
15. Proceedings for offences.

Repeals, etc.

16. Repeals and savings.
17. Short title, extent and commencement.

SCHEDULE—Enactments repealed.

An Act to consolidate certain enactments and Orders in Council relating to the licensing of dogs kept in Great Britain.
[16th July, 1959]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Charge of duty

Charge of duty. 1.—(1) Subject to the provisions of this Act, there shall be charged in respect of every dog kept in Great Britain a duty of seven shillings and sixpence which shall be paid annually upon a licence to be taken out by the person who keeps the dog.

(2) Licences issued under this Act in Scotland shall be excise licences and the duty on licences so issued a duty of excise.

Exemptions from duty

Exemption for puppies. 2.—(1) No duty shall be chargeable under this Act in respect of a dog under the age of six months.

(2) Where an owner or master of hounds has taken out licences under this Act for all the hounds entered in any pack kept by him, no duty shall be chargeable under this Act in respect of a hound under the age of twelve months kept by him which has never been entered in, or used with, a pack of hounds.

Exemption for dog kept by blind person. 3. No duty shall be chargeable under this Act in respect of a dog kept and used solely by a blind person for his guidance.

Exemption for sheep dogs. 4.—(1) No duty shall be chargeable under this Act in respect of a dog kept and used solely for the purpose of tending sheep or cattle on a farm, or by a shepherd in the exercise of his calling or occupation, if the owner of the dog obtains a certificate of exemption from duty in respect of the dog under this section.

(2) An applicant, whether a farmer or a shepherd, for the issue of a certificate under this section shall—

(a) make and sign a declaration in such form as may be directed or prescribed under section eleven of this Act, stating the number of dogs kept by him solely for use in tending sheep or cattle or, as the case may be, in the exercise of his calling or occupation as a shepherd, and containing such further particulars as are required by the form of declaration to be therein stated; and

(b) deliver the declaration to such person as may be specified therein.

(3) A person who duly applies for the issue of a certificate under this section shall, subject to the provisions of section five of this Act or section six thereof, as the case may be, be entitled to receive a certificate of exemption from duty in respect of the dog or dogs, not exceeding two, kept by him as aforesaid.

(4) Where the occupier of a sheep farm owns more than four hundred sheep, which feed on common or unenclosed land, so that more than two dogs are required to be kept by him for the purpose of tending sheep, and those facts are stated in the declaration made by him under subsection (2) of this section, then, subject to the provisions of section five of this Act or section six thereof, as the case may be, he shall be entitled to receive a certificate of exemption from duty in respect of a third dog kept by him solely for that purpose, and if the number of sheep owned by him amounts to one thousand he shall be entitled to receive such a certificate in respect of a fourth dog so kept, and for every five hundred sheep owned by him over one thousand he shall be entitled to receive such a certificate in respect of an additional dog so kept, so however that he shall not be entitled to receive such a certificate in respect of more than eight dogs kept on the farm.

5.—(1) A person shall not be entitled to a certificate under the last foregoing section in respect of a dog kept in England or Wales unless he has previously obtained the consent of a magistrates' court to the issue of the certificate, but that consent shall not be withheld if the court is of opinion that the conditions mentioned in that section entitling a person to receive a certificate of exemption in respect of a dog kept by him apply in the case of the applicant.

Provisions as to issue of certificate under s. 4 in respect of dog kept in England or Wales.

For the purposes of section ninety-eight of the Magistrates' Courts Act, 1952 (which provides for the constitution and place of sitting of a magistrates' court when trying an information or hearing a complaint), an application for the consent of a magistrates' court under this section shall be deemed to be a complaint.

(2) Where a magistrates' court gives its consent to the issue of a certificate of exemption under the last foregoing section, the clerk to the court shall send the declaration made by the applicant under subsection (2) of that section, with the consent of the court endorsed thereon, to the clerk of the council of the county or the town clerk of the county borough in which the applicant resides, and it shall be the duty of the council of that county or borough to issue to the applicant the certificate of exemption to which he is entitled under that section.

(3) Rules made under section fifteen of the Justices of the Peace Act, 1949, shall provide for dispensing with the appearance of the applicant for the consent of a magistrates' court under this section except in cases where the application is opposed and the court considers the appearance of the applicant to be necessary for the proper consideration of the application.

(4) No fee shall be chargeable in respect of an application made, or consent given, under this section.

(5) For the purposes of subsection (3) of section one hundred and twenty-two of the Magistrates' Courts Act, 1952 (which provides that any Act passed before the sixteenth day of December, nineteen hundred and forty-nine, in so far as that Act relates to matters about which rules may be made under section fifteen of the Justices of the Peace Act, 1949, shall have effect subject to any rules so made and may be amended or repealed by the rules accordingly), this section shall be deemed to be an Act passed before the said sixteenth day of December.

Provisions as to issue of certificate under s. 4 in respect of dog kept in Scotland.

6.—(1) A person shall not be entitled to a certificate under section four of this Act in respect of a dog kept in Scotland unless he has previously obtained the consent of the sheriff having jurisdiction in the place where the dog is kept to the issue of the certificate, but that consent shall not be withheld if the sheriff is of opinion that the conditions mentioned in the said section four entitling a person to receive a certificate of exemption in respect of a dog kept by him apply in the case of the applicant.

(2) The procedure for obtaining the consent of a sheriff under this section shall be regulated by the Court of Session by act of sederunt, and the act of sederunt shall provide for dispensing with the appearance of the applicant for consent except in cases where the application is opposed and the sheriff considers the appearance of the applicant to be necessary for the proper consideration of the application.

(3) Such fee, not exceeding one shilling, as may be prescribed by act of sederunt under this section shall be chargeable in respect of an application for the consent of a sheriff under this section.

(4) It shall be the duty of the Commissioners of Customs and Excise, on receiving a declaration made by an applicant under subsection (2) of section four of this Act in respect of a dog kept in Scotland and evidence of the relative consent of the sheriff under this section, to issue to the applicant the certificate of exemption to which he is entitled under the said section four.

Levy of duties, issue of licences, etc.

7.—(1) The duties chargeable under this Act in respect of dogs kept in England or Wales shall be levied by the councils of counties and county boroughs.

(2) Licences under this Act in respect of dogs kept as aforesaid shall be issued at various places in counties and county boroughs so as to enable persons to obtain such licences near their homes.

(3) Licences under this Act in respect of dogs kept as aforesaid shall be issued only by such officers of the Post Office as are authorised by the Postmaster-General who shall have regard to the provisions of the last foregoing subsection.

(4) The Postmaster-General shall at such convenient times as may be arranged by him with the Minister of Housing and Local Government pay to the council of each county and county borough the amount of the duties received by him in respect of licences under this Act issued at post offices within that county or borough in respect of dogs kept in England or Wales.

(5) The Postmaster-General may, on the representation of the council of a county or county borough, appoint an officer of the council to be an officer of the Post Office for the purpose of the issue of licences under this Act in respect of dogs kept in England or Wales, and any such appointment may be made subject to such conditions as the Postmaster-General may impose.

(6) The council on whose representation an officer is appointed to be an officer of the Post Office under the last foregoing subsection shall arrange for the supervision of that officer in the performance of his duties under this Act as such an officer and shall take adequate security for the faithful discharge of those duties.

(7) Receipts and expenditure under this Act of an officer of a council appointed to be an officer of the Post Office under subsection (5) of this section shall be deemed to be receipts and expenditure of an officer of that council.

(8) The council of every county and county borough on whose representation an officer of the council is appointed to be an officer of the Post Office under subsection (5) of this section, and the officer so appointed, shall keep such accounts and make such returns, in relation to the duties receivable under this Act by that officer, as the Minister of Housing and Local Government, with the concurrence of the Postmaster-General, may direct; and the accounts of that officer shall be audited as part of the general accounts of the council, so, however, that if the said Minister is satisfied that a special audit of the accounts of an officer so appointed is desirable he may at any time require that officer to submit his accounts for audit to such person, in such manner and at such time, as the said Minister may direct.

Levy of duties,
issue of
licences, etc.,
in respect of
dogs kept in
England or
Wales.

Levy of duties, and issue of licences, in respect of dogs kept in Scotland.

8.—(1) The duties chargeable under this Act in respect of dogs kept in Scotland shall be levied by the Commissioners of Customs and Excise.

(2) Licences under this Act in respect of dogs kept in Scotland shall be issued by such officers as the said Commissioners may direct.

(3) In this section "officer" means, subject to the provisions of subsection (2) of section four of the Customs and Excise Act, 1952, a person commissioned by the said Commissioners.

Duration of licences and certificates of exemption.

9.—(1) A licence taken out under this Act shall be in force from the time it is taken out until the expiration of the period of twelve months beginning with the first day of the month in which it is taken out:

Provided that this subsection shall not be taken as preventing the licence from being suspended under the Protection of Animals (Cruelty to Dogs) Act, 1933, or the Protection of Animals (Cruelty to Dogs) (Scotland) Act, 1934.

(2) A certificate of exemption issued under section four of this Act shall be dated on the day on which it is issued and shall be in force until the expiration of the calendar year in which it is issued.

Registers of dog licences.

10.—(1) The clerk of the council of every county and the town clerk of every county borough shall keep a register of all licences issued under this Act in that county or borough, specifying the name and place of abode of the person to whom any such licence is issued and the number of dogs in respect of which the licence is issued.

This subsection shall not apply to Scotland.

(2) Every officer authorised by the Commissioners of Customs and Excise to issue licences under this Act shall keep a register of all such licences issued by him, specifying the name and place of abode of the person to whom any such licence is issued and the number of dogs in respect of which the licence is issued.

(3) A justice of the peace, a police constable and any other officer of the peace may at any convenient time inspect so much of any register kept under this section as relates to the licences issued in the current or preceding year.

Forms of licences, etc.

11. The Commissioners of Customs and Excise shall provide the forms of licence, declaration and certificate of exemption required for the purposes of this Act, and the said licence, declaration and certificate shall be in such form as the Commissioners direct, but if the Treasury prescribe the form of a licence, declaration or certificate of exemption required for those purposes in respect of a dog kept in England or Wales, that licence, declaration or certificate shall be in the form so prescribed.

Offences

12.—(1) If a person keeps a dog for which a licence under this Act is not in force, not being a dog exempted from duty by virtue of section two, section three or section four of this Act, or if a person keeps a greater number of dogs than he is authorised to keep by virtue of a licence in force under this Act, he shall be liable to a penalty of five pounds.

Penalty for keeping dog without licence.

(2) A person in whose custody, charge or possession, or in whose house or premises, a dog shall be found or seen shall, unless the contrary is proved, be deemed to be the person who keeps that dog, and, in the case of hounds, their owner or the master shall be deemed to be the person who keeps them.

(3) In proceedings for an offence under this section it shall rest on the accused to prove the age of the dog to which the proceedings relate.

13. If a person—

- (a) who has taken out a licence under this Act, or
- (b) to whom a certificate of exemption has been issued under section four of this Act,

Penalty for not producing licence, etc.

fails to produce the licence or certificate, as the case may be, for inspection by an authorised officer or a police constable within a reasonable time after a request for its production has been made by that officer or constable, he shall be liable to a penalty of five pounds.

In this section “authorised officer”, in relation to a licence or certificate of exemption issued in respect of a dog kept in England or Wales, means an officer of the council of a county or county borough authorised by that council to request the production of such a licence or certificate and, in relation to a licence or certificate of exemption issued in respect of a dog kept in Scotland, means an officer within the meaning of section eight of this Act.

14. A person who delivers a declaration under section four of this Act in which a particular required to be stated therein is false shall be liable to a penalty of twenty pounds.

Penalty for making false statement in declaration under s. 4.

15.—(1) Without prejudice to any order for the time being in force made by the Treasury under section three hundred and thirteen of the Customs and Excise Act, 1952 (which makes provision for the application of certain provisions of that Act to duties the power to levy which has been transferred to local authorities under certain enactments and which include the duties on dog licences), an offence under this Act committed in England or Wales shall be punishable on summary conviction on an information laid by a police constable.

Proceedings for offences.

(2) An offence under this Act committed in Scotland shall be punishable on conviction by a court of summary jurisdiction, and in any proceedings for such an offence the court may award expenses.

Repeals, etc.

Repeals and
savings.

16.—(1) The enactments specified in the first and second columns of the Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

(2) The Order in Council made on the nineteenth day of October, nineteen hundred and eight, under section six of the Finance Act, 1908, fixing the date on which the power to levy the duty on certain licences was to be transferred to the councils of counties and county boroughs and making further provisions to give effect to the transfer, except article VIII thereof, shall cease to apply to the duty on licences for dogs and to those licences.

(3) In so far as any licence or certificate issued or other thing done under an enactment repealed by this Act, under the Order in Council referred to in the last foregoing subsection or under the Local Taxation (Licence Officers) Order, 1922, could have been issued or done under a corresponding provision of this Act, it shall not be invalidated by the repeal effected by subsection (1) of this section or by the provisions of the last foregoing subsection but shall have effect as if issued or done under that corresponding provision, subject, however, in the case of a licence whose holder is for the time being disqualified by virtue of an order under section one of the Protection of Animals (Cruelty to Dogs) Act, 1933, or section one of the Protection of Animals (Cruelty to Dogs) (Scotland) Act, 1934, for keeping a dog, to the provisions of subsection (3) of the former or, as the case may be, the latter section.

(4) Nothing in this Act shall affect any equitable adjustment respecting the distribution of the proceeds of the duty on dog licences made under the Local Government Act, 1888, or otherwise.

(5) Subsections (2) to (4) of section three hundred and thirteen of the Customs and Excise Act, 1952 (which make provision for the application of certain provisions of that Act to duties the power to levy which has been transferred to local authorities under certain enactments and which include the duties on dog licences), and any order made by the Treasury under the said section three hundred and thirteen, shall have effect in England and Wales in relation to the duties on dog licences and to the councils of counties and county boroughs and their officers with respect to those duties and licences as they have effect in relation to duties transferred under section six of the Finance Act, 1908, and to local authorities and their officers with respect to the transferred duties and to the licences on which those duties are imposed; and the reference in the said subsection (4) to the Order in Council made under section six of the said Act of 1908 shall be construed as including a reference to any provision of this Act which is a provision reproduced from that Order in Council.

(6) Any register of dog licences kept by the clerk of the council of a county or by the town clerk of a county borough under the Order in Council referred to in subsection (2) of this section, and any register of dog licences kept by an officer under the Dog Licences Act, 1867, shall be deemed to form part of the corresponding register to be kept under this Act.

(7) Any enactment or other document referring to an Act or enactment repealed by this Act shall be construed as referring to this Act or the corresponding enactment therein.

(8) The mention of particular matters in this section shall be without prejudice to the general application of subsection (2) of section thirty-eight of the Interpretation Act, 1889, with regard to the effect of repeals.

17.—(1) This Act may be cited as the Dog Licences Act, 1959. Short title,
extent and
commence-
ment.

(2) This Act shall not extend to Northern Ireland.

(3) This Act shall come into operation at the expiration of three months beginning with the date of its passing.

SCHEDULE

Section 16.

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
30 & 31 Vict. c. 5.	The Dog Licences Act, 1867.	The whole Act.
41 & 42 Vict. c. 15.	The Customs and Inland Revenue Act, 1878.	Section seventeen and sections nineteen to twenty-three.
42 & 43 Vict. c. 21.	The Customs and Inland Revenue Act, 1879.	Section twenty-six.
6 Edw. 7. c. 32	The Dogs Act, 1906 ...	Section five.
8 Edw. 7. c. 16	The Finance Act, 1908 ...	In section six, in subsection (4), the word " dogs ".
17 & 18 Geo. 5. c. 35.	The Sheriff Courts and Legal Officers (Scotland) Act, 1927.	Section eighteen.
12 & 13 Geo. 6. c. 47.	The Finance Act, 1949 ...	Section thirteen.
6 & 7 Eliz. 2. c. 56.	The Finance Act, 1958 ...	Section eleven.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Dog Licences Act, 1867	30 & 31 Vict. c. 5.
Local Government Act, 1888	51 & 52 Vict. c. 41.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Finance Act, 1908	8 Edw. 7. c. 16.
Protection of Animals (Cruelty to Dogs) Act, 1933.	23 & 24 Geo. 5. c. 17.
Protection of Animals (Cruelty to Dogs) (Scotland) Act, 1934.	24 & 25 Geo. 5. c. 25.
Justices of the Peace Act, 1949	12, 13 & 14 Geo. 6. c. 101.
Customs and Excise Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 44.
Magistrates' Courts Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 55.

CHAPTER 56

Rights of Light Act, 1959

ARRANGEMENT OF SECTIONS

Section

1. Temporary extension of period of prescription for acquisition of rights of light.
2. Registration of notice in lieu of obstruction of access of light.
3. Effect of registered notice and proceedings relating thereto.
4. Application to Crown land.
5. Power to make rules.
6. Corresponding legislation in Northern Ireland.
7. Interpretation.
8. Short title, commencement and extent.

An Act to amend the law relating to rights of light, and for purposes connected therewith.

[16th July, 1959]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Temporary extension of period of prescription for acquisition of rights of light.

1.—(1) For the purposes of any such proceedings as are mentioned in the next following subsection—

- (a) section three of the Prescription Act, 1832 (whereby the uninterrupted enjoyment of the access of light for twenty years may confer an absolute right thereto), and